KHULEKANI SIBANDA

Versus

MINISTER OF LEGAL AND PARLIAMENTAL AFFAIRS

AND

COUNCIL OF LEGAL EDUCATION

AND

THE LAW SOCIETY OF ZIMBABWE

IN THE HIGH COURT OF ZIMBABWE
MOYO J
26 FEBRUARY 2026 AND 5 AUGUST 2026

Opposed matter

*W Ncube,*for the applicant
L Matapura for the 2nd respondents
Advocate L Nkomo, for the 3rd respondents

MOYO J: This is an application for condonation of failure to serve the notice of opposition and file a return of service in terms of the Rules, it is opposed by the 2nd and 3rd respondent. The matter was struck off the roll following a procedural problem. Applicant argues that the matter can be reinstated and accordingly seeks a reinstatement, Respondents argue that the application is fatally defective and that it is not properly before the court for want of compliance with practise directive number 1 of 2025.

2nd Respondent preliminary objection

Is that the application if fatally defective for seeking incompetent relief in that the matter was struck off the roll for being fatally defective and therefore there is nothing to resuscitate and that it is fatally defective for failure to provide for respondents. They also argue that procedural rights have not been respected as the application does not tell respondent what to do upon receipt of the application.

3rd respondent raised a preliminary objective to the effect that applicant is improperly before the court for want of compliance with Practice direction number 1 of 2025 and that the relief sought is incompetent in that it seeks to validate nullity.

The applicant also raised preliminary objections to the lack of authority on the deponent of 3rd respondent's opposing affidavit. That 3rd respondent cannot instruct an advocate directly without legal counsel. That 2nd Respondent cannot advance technical objections yet it is merely a party with an operational interest.

I will start with the objections by the applicant because they then determine whether the application is opposed or not before l can look at the objections by the Respondent.

The 3rd Respondent argues that as a legal officer of the law society the Secretary must have the authority to depose to an affidavit and that the other authorities have the power to delegate such authority to him. I accept the proposition that a legal officer of an organisation must be expected by this court to be an authorised official by it to depose to an affidavit. I hold the view that the court must be satisfied that the party before it is the cited litigant in the absence of evidence to the contrary. Refer to the case of *Delta Beverages vs Everson Chirau and another* HH421/18

I have not been favoured with any such evidence by the applicant and l accordingly dismiss that preliminary point: 3rd Respondent is accordingly properly before me.

Again, the preliminary point that an interested litigant who has been cited cannot raise a preliminary objection has not been supported by any precedent and l am not persuaded that the court can hold that a litigant who has been cited by the applicant as an interested party can however, be limited in any defence or objection they can raise in the proceedings. For that reason again l dismiss that preliminary objection.

I now turn to deal with the preliminary objections by the 2 Respondents:

1. Failure to comply with the Practice direction 1 of 25. I do not agree with 3rd respondent on the application of practise direction number 1 of 2025 because 3rd respondent seeks to suggest that there ought be an order for dismissal only before a reinstatement can be sought.

I do not believe that is the meaning of the Practise Direction which l believe should equally apply to the matter at hand. However, 3rd Respondent argues that in terms of paragraph 5.2 of the Practise Direction a time frame on the period is given within which a reinstatement can be sought which is 15 days yet applicant's matter was struck off in July according to the 3rd respondent only to be sought to be reinstated in November. However another difficulty was

observed by the 3rd Respondent is that the order being the subject matter of the condonation and the reinstatement was not included in the application making it difficult for the court to appreciate the exact working. However, it seems the parties are in agreement that the matter was struck off the roll.

3rd Respondent argues that where a matter has been struck off the roll there is nothing to reinstate. 3rd Respondent argues that the matter having been struck off the Applicant should not have sought to reinstate a nullity. Again 3rd Respondent objects on the basis that the applicant did not detail the procedural steps that a Respondent must follow in opposition and for that reason too the application is fatally defective.

Refer to *Bindura Municipality vs Mugogo* 2015 (2) ZLR 237 (5) where the court held that a struck off matter cannot simply be reinstated.

I tend to agree with both Respondents in that the Applicant failed to comply with the 15 day period under Practice Direction number 1 of 25 and the fact that even the relief sought seeks to build on a nullity. I however, do not accept that applicant's failure to provide procedural rights amounts to a fatal defect. It is not every irregularity that is fatal in my view.

I however, uphold the point in *limine* on failure to adhere to the provisions of Practise Direction 1 of 25 and in seeking to resuscitate a nullity. It is for those reasons that l will uphold the 2 preliminary objections and l will consequently strike the matter off the roll.

The application is struck off the roll with costs.

Civil Division of the Attorney General, 1st respondent's legal practitioners
Mafongoya and Matapura Law Practice, 2nd respondent's legal practitioners